

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUPP043841: JANE DOE vs JOSEPH PEARSON, et al.

08/28/2026 in Department 41

**Motion to Compel Further Responses to Demand for Production of Documents, Set Two
and for Sanctions**

OSC re DISCOVERY REFEREE

The parties should be ready to discuss why a discovery referee should not be appointed per CCP secs.638/639; (2) in the alternative, the Court can set a date for an IDC; and/or (3) the parties should further meet and confer and work on a joint statement for the Court on all seven motions. Please note that the trial date in this matter is not set until March 1, 2027. Thus, the parties have more than enough time to work these matters out without wasting Court resources.

The Court notes that there are several motions to compel further responses that were set on the Court's calendar for July 7, 2026, July 10, 2026, July 20, 2026, July 21, 2026, and now the continued date of August 28, 2026.

At the outset, please note the Court expects the parties to comply with the discovery provisions of the Code without the need for Court intervention. The Court likewise expects parties to carefully utilize the discovery tools provided by the Code. "[D]iscovery devices [are] be used as tools to facilitate litigation rather than as weapons to wage litigation. These tools should be well calibrated; the lancet is to be preferred over the sledgehammer." (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 221.)

Thus, at the hearing the parties should be prepared to address the following:

- (1) The parties should explain to the Court why a Discovery Referee should or should not be appointed (the Court has read and considered Plaintiff's Response to the OSC regarding the Appointment of a Referee); and
- (2) Whether the Court should conduct an IDC in lieu of appointing a discovery referee.

The Court expects the parties to comply with the discovery provisions of the Code without the need for Court intervention. The Court likewise expects parties to carefully utilize the discovery tools provided by the Code. "[D]iscovery devices [are] be used as tools to facilitate litigation rather than as weapons to wage litigation. These tools should be well calibrated; the lancet is to be preferred over the sledgehammer." (*Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, 221.)

Based on the Court's review of the papers, the issues presented by way of these motions to compel further responses are ones that the parties should have been able to work out without court intervention.

Notwithstanding the above, The Court's Tentative Rulings on the **MOTIONS** are:

- 1) Defendant's Motion to Compel Further Responses to Production Request: **DENIED**
Plaintiff's Motion to Compel Further Responses to Form Interrogatories, set two: withdrawn on 8/25/26;
- 2) Plaintiff's Motion to Compel Further Responses to RFAs, set two, withdrawn on 8/25/26;
- 3) Plaintiff's Motion to Compel Further Responses to Demand for Inspection, set three, **GRANTED;**
- 4) Plaintiff's Motion to Compel Compliance to Demand for Inspection, set three, **DENIED;**
- 5) Plaintiff's Motion to Compel Further Responses to Demand for Production, set two, **GRANTED;** and
- 6) Plaintiff's Motion to Compel Further Responses to Form Interrogatories, set one, **DENIED.**

As to where Plaintiff's Motions are GRANTED, Defendant is ordered to serve further, verified code-compliant responses within 20 days of this Court's order. (Code Civ. Proc., §§ 2030.300, 2031.310 and 2033.290.)

All sanction requests are DENIED.

Counsel is warned and advised being careful to cite only to any authority compliant within the ethical rules of conduct, as well as the use of Artificial Intelligence in the drafting of pleadings.

Plaintiff to give notice of this Court's ruling.